

24STCV06424 24STCV06424

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Case Number: 24STCV06424 Hearing Date: July 31, 2026 Dept: 510

No. 14 - BHFC Operating, LLC v. Trea

SH Brockman

Defendant Trea SH Brockman, LLC's Motion to Compel Further Responses to Requests for Production

Defendant

Trea SH Brockman, LLC moves to compel Plaintiff BHFC Operating, LLC to serve further response to requests for production, nos. 28 and 30.

Meet and Confer

Motions to compel further responses must include "a meet and confer declaration under Section 2016.040." (Code Civ. Proc., §§ 2030.310(b)(2).) The moving party must make a "reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.) This rule aims "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order." (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293.)

Plaintiff

argues that Defendant did not meet and confer in good faith before filing this motion. The Court agrees. On May 29, 2026, Defense counsel emailed Plaintiff's counsel agreeing to extend its deadline to serve supplemental responses to June 15, 2026 if Plaintiff complied with various conditions. While Defendant argues in its motion that it communicated "it would grant the extension only if Plaintiff accepted specific conditions, in writing," (Reply, at p. 11), the correspondence itself does not reflect this requirement (see Seddigh Decl., Ex. A, at p. 1.) Defendant filed this motion on June 12, 2026, without following up

with Plaintiff's counsel regarding whether supplemental responses were forthcoming; Plaintiff supplemented its responses on June 15, 2026. (Id., Ex. B.) Plaintiff's counsel and Defense counsel were still engaged in meet and confer efforts when Defendant filed this motion. This demonstrates that Defense counsel did not wish to meaningfully meet and confer with Plaintiff's counsel regarding the discovery issues before seeking relief from this Court.

However, the Court recognizes that Plaintiff has unreasonably delayed addressing and resolving these discovery disputes. Thus, notwithstanding Plaintiff's failure to meet and confer, the Court exercises its discretion to consider the merits of the discovery disputes.

Requests for Production

Defendant

moves to compel further responses to request for production nos. 28 and 30. A requesting party may move to compel further responses if "[a] statement of compliance with the demand is incomplete," "[a] representation of inability to comply is inadequate, incomplete, or evasive," or "[a]n objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310, subd. (a).) The Court exercises its discretion to consider the content of Plaintiff's third supplemental responses when ruling on this motion.

Plaintiff

made incomplete statements of compliance in response to both requests. "A statement that the party to whom a demand for inspection ... has been directed will comply with the particular demand shall state that the production ... will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Code Civ. Proc., § 2031.220.)

After objecting to each request, Plaintiff's third supplemental responses state, in relevant part: "Responsive documents are produced at [Specified Bates Nos.]."

This is not a proper statement of compliance. A statement of compliance must state that "all documents or things in the demanded category that are in

the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.) A statement of compliance in whole must use the word “all” because it states under oath not only that the responding party will produce some documents, but also that the responding party is not withholding any responsive documents. To the extent Plaintiff intended to make only partial statements of compliance or are withholding documents, the responses are evasive and do not clearly identify which documents are being withheld subject to which objections as required. (Code Civ. Proc., § 2031.240, subd. (b)(1).) Specifically, for request no. 28, Plaintiff does not identify why weekly reports are being withheld. Defendant is entitled to further responses.

Sanctions

Defendant

moves for an extreme \$20,991.95 in sanctions against Plaintiff and its counsel for 47.9 hours of work. (Hochhausler Decl., ¶ 16.) In opposition, Plaintiff seeks \$7,200 in sanctions against Defendant and its counsel. “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2031.310(h).)

The

Court exercises its discretion not to impose sanctions on any party. While Plaintiff’s responses were not code-compliant, Defendant failed to fully exhaust its meet and confer obligations under the Code, which potentially would have eliminated the need for this motion.

Disposition

Defendant Trea SH Brockman, LLC’s

motion to compel further responses to requests for production is granted as to compelling further responses only. Plaintiff BHFC Operating, LLC is ordered to serve further verified Code-compliant responses to request for production nos. 28 and 30 within 21 days.